

TENTATIVE RULINGS

FOR: September 02, 2026

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(Cal. Rules of Court, Rule 1.150(c) & (d))**

**** All matters originally set in Dept. A will be heard in Dept. B
Except as Specifically Noted Below ****

DEFENDANTS KENNETH LEONG AND MIMI LEONG’S SPECIAL MOTION TO STRIKE FIRST AMENDED COMPLAINT

TENTATIVE RULING: The Motion is GRANTED IN PART. Plaintiffs’ claims against Mimi Leong, save the Quiet Title Claim, are DISMISSED. Each of Plaintiff’s claims against Kenneth Leong, save the Quiet Title Claim, based on allegations that he gave false information to police officers and/or “instigated and directed the filing of restraining order applications containing false allegations,” and/or otherwise actively participated in the filing and prosecution of *Leong v. Mazy I* and *II* (defined below) are DISMISSED. The Motion is DENIED as to Plaintiffs’ claims against Kenneth Leong, arising out of either civil conspiracy or aiding-and-abetting theories of liability, based on allegations that he recommended to Leo Leong that Leo transfer an interest in the Residence to Khin Kyi Leong.

Through its July 23, 2026, Minute Order sustaining Leo Leong’s and Khin Kyi Leong’s demurrer to the First Amended Complaint (FAC), the Court granted Plaintiffs “10 Court days’ leave, from the date of Notice of Entry of order of the Court’s ruling on Defendants Kenneth Leong and Mimi Leong’s Special Motion To Strike First Amended Complaint, to further amend the operative complaint.” The Court now further orders that Plaintiffs’ amendment shall conform also with the instant Order, and omit allegations of the protected activity discussed below.

A. PRELIMINARY MATTERS

1. Nature of Motion

Defendants Kenneth Leong and Mimi Leong (Moving Defendants) specially move, pursuant to California Code of Civil Procedure section 425.16 (Section 425.16), for an order striking the sixth, seventh, eighth, tenth, eleventh, twelfth, thirteenth, and fourteenth causes of action from the First Amended Complaint (FAC) filed in the action by Plaintiffs Lilley Leong and Anthony Mazy on grounds that the Complaint is a strategic lawsuit against public policy (SLAPP).

2. Nature of Claims

The instant action concerns the ownership, possession, and events arising out of the possession, of certain real property in the City of American Canyon (Residence).

Plaintiffs allege as follows. In 2002, Plaintiff Lilley Leong acquired an undivided 50% interest in the Residence, as joint tenant with her brother Defendant Leo Leong. Beginning in 2023, Lilly Leong communicated to Leo Leong her intention to move into the Residence with her husband, Plaintiff Anthony Mazy. In 2025, Defendant Khin Kyi Leong occupied the

Residence.¹ She communicated that she did not want Plaintiff Anthony Mazy to move into the Residence, and at times also indicated that she did not want either Plaintiff moving into the Residence. In or about February and March 2025, Khin Kyi Leong, who had been staying in a second bedroom, moved her belongings into the master bedroom of the Residence and installed a lock on the door of that bedroom.

On May 24, 2025, Plaintiffs removed Khin Kyi Leong's lock and installed one of their own on the master bedroom door. On May 24, 2025, Lilly Leong suffered a heart attack. On May 25, 2025, Plaintiffs sought to move their belongings into the Residence, and found that their lock had been removed by Leo Leong, who had reinstalled Khin Kyi Leong's lock on the master bedroom door of the Residence. Mr. Mazy again removed the lock at which point Khin Kyi Leong called the police.

Officers from the Napa County Sheriff's Department responded and initially concluded that the matter was a civil dispute. However, Officer Sinjin Romero of the Department returned to the Residence that evening to conduct additional interviews. During Officer Romero's conversation with Khin Kyi Leong, she was on a "merged" telephone call with Defendants Kenneth Leong and Mimi Leong.

Lilly Leong was hospitalized from May 27-28, 2025.

The Court takes judicial notice, from matters in its files, that on May 27, 2025, Khin Kyi Leong, appearing in Pro Per, initiated an action captioned *Khin Kyi Leong v. Anthony Mazy*, Case No. 25FL000391 (*Leong v. Mazy I*), in this Court, by filing a Request for Domestic Violence Restraining Orders naming only Mr. Mazy as Respondent. On June 2, 2025, Khin Kyi Leong, appearing in Pro Per, initiated another action captioned *Khin Kyi Leong v. Anthony Mazy*, Case No. 25FL000401 (*Leong v. Mazy II*), in this Court, by filing a Request for Elder or Dependent Adult Abuse Restraining Orders, again naming only Mr. Mazy as Respondent.

Plaintiffs allege as follows. Kenneth Leong, who lives in Southern California drafted the respective Requests that commenced the two Family Law matters. The Requests included material, false statements.

The Court takes judicial notice that it issued temporary restraining orders (each a TRO), respectively, in *Leong v. Mazy I* on May 27, 2025, and in *Leong v. Mazy II* on June 3, 2025, which included orders to stay 100 yards away from Khin Kyi Leong as well as an order for Mr. Mazy to move out of the Residence.

Plaintiffs allege as follows. On June 1, 2025, Leo Leong transferred to Khin Kyi Leong a 3% interest in the Residence.

Mr. Mazy was served with the TROs on June 15, 2025. He underwent spinal surgery on June 20, 2025. As a result of the TROs, he was forced to leave the Residence and was denied access to his medications, medical equipment, and personal belongings.

¹ Though perhaps not explicitly alleged in the FAC, it appears uncontested that Khin Kyi Leong is the mother of Plaintiff Lilly Leong, and Defendants Leo Leong, Kenneth Leong, and Mimi Leong.

The Court takes judicial notice that, following a multiday hearing ending on October 23, 2025, the Court issued a Proposed Statement of Decision which declined to issue the restraining orders and terminated the TROs. Eventually the Court's Statement of Decision confirmed its tentative decision to deny the restraining orders.

Despite having served a formal Notice of Ouster and Demand for Concurrent Possession, pursuant to Civil Code section 843, Defendants have refused and continue to physically block Plaintiffs from possession and use of the Residence.

Based on these allegations and judicial proceedings, Plaintiffs assert 10 claims (each styled a "cause of action") against Kenneth Leong for: quiet title (fifth), trespass to real property (sixth), conversion of personal property (seventh), trespass to chattels (eighth), violation of the BANE Act (tenth), malicious prosecution (eleventh), abuse of process (twelfth), defamation (thirteenth), and intentional infliction of emotional distress (styled "eleventh cause of action," but listed as the fourteenth claim). Plaintiffs assert, against Mimi Leong, the counts for quiet title, violation of the BANE Act, malicious prosecution, abuse of process, defamation, and intentional infliction of emotional distress.

Through the Opposition, and Supplemental Opposition, however, Plaintiffs repeatedly assert that each of these claims is asserted against Mimi and Kenneth, not directly, but via civil conspiracy or aiding-and-abetting theories of liability. Based on these assertions, the Court understands that Plaintiffs are not asserting any claims for direct liability against Mimi and Kenneth.

3. Claims Implicated by the Instant Motion

The moving papers are inconsistent in identifying the claims at issue on the present Motion. The Notice expressly states that the Moving Defendants "move for an order striking the sixth, seventh, eighth, tenth, eleventh, twelfth, thirteenth, and fourteenth causes of action from [the FAC]." (See Notice of Motion at 2:3-6.) Through the Memorandum filed in support of the Motion (Support Memo), however, Moving Defendants argue that "[e]ach of the causes of action that [Plaintiffs] assert against defendants Kenneth Leong . . . and Mimi Leong . . . arise out of communications protected under California's anti-SLAPP statute." (Support Memo at 1:2-4.) Moving Defendants also assert that "[e]ach of Plaintiffs' causes of action against Kenneth are based on the allegation that he drafted the restraining order applications that resulted in Anthony being barred from the Property for over four months and that he recommended that Leo transfer a 3% ownership interest in the Property to Khin Kyi." (*Id.* at 3:22-25.)

It appears from the foregoing, and from the arguments asserted, that Moving Defendants simply overlooked, in drafting the instant Motion, that the Quiet Title Claim is asserted against all defendants to the action. That Count is based on an allegation that "Defendants claim adverse interests hostile to Plaintiffs title and possession rights." (FAC at ¶ 78.) It is not clear to the Court how such a claim *could be* based on protected activity, and Moving Defendants fail to persuade the Court, that Plaintiffs' claim is based on such activity.

Based on the foregoing, the Court understands that the instant motion is *not* directed at Plaintiffs' Quiet Title cause of action.

B. LEGAL BACKGROUND

"A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc., § 425.16, subd. (b)(1).) "The special motion to strike established in section 425.16 may be used to attack a cause of action if (1) the cause of action arises from 'any act [by the defendant] in furtherance of the person's right of petition or free speech under the United States or California Constitution,' and (2) the defendant was exercising his or her right of free speech 'in connection with a public issue.' (Citation.)" (*Chabak v. Monroy* (2007) 154 Cal.App.4th 1502, 1511.)

"The anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity." (*Baral v. Schnitt*, *supra*, 1 Cal.5th at p. 384.)

"The moving defendant's burden is to demonstrate that the act or acts of which the plaintiff complains were taken 'in furtherance of the [defendant]'s right of petition or free speech under the United States or California Constitution in connection with a public issue,' as defined in the statute. (§ 425.16, subd. (b)(1).)" (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal. 4th 53, 67 (*Equilon*).) "As used in this section, 'act in furtherance of a person's right of petition or free speech under the United States or California Constitution in connection with a public issue' includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law; (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law; (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest; (4) or any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest." (§ 425.16, subd. (e).)

"[A] complaint is not a SLAPP suit unless the gravamen of the complaint is that defendants acted wrongfully by engaging in the protected activity." (*Drell v. Cohen* (2014) 232 Cal.App.4th 24, 30.) "The anti-SLAPP statute's definitional focus is not the form of the plaintiff's cause of action but, rather, the defendant's activity that gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning." (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92 (*Navellier*).)

"If the court finds such a showing has been made, it then determines whether the plaintiff has demonstrated a probability of prevailing on the claim. Under section 425.16, subdivision (b)(2), the trial court in making these determinations considers 'the pleadings, and supporting

and opposing affidavits stating the facts upon which the liability or defense is based.” (*Equilon*, supra, 29 Cal.4th at 67.) “[I]n order to establish the requisite probability of prevailing (§ 425.16, subd. (b)(1)), the plaintiff need only have ‘stated and substantiated a legally sufficient claim.’ [Citations.] ‘Put another way, the plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’ [Citations.]’ (*Navellier*, supra, 29 Cal.4th at 88-89.) Because the burden on the plaintiff is similar to the standard used in determining motions for summary judgment. ‘[t]he showing must be made through ‘competent and admissible evidence.’ [Citations.] Thus, declarations that lack foundation or personal knowledge, or that are argumentative, speculative, impermissible opinion, hearsay, or conclusory are to be disregarded.” (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 26 (*Gilbert*)). “In making this assessment it is ‘the court’s responsibility . . . to accept as true the evidence favorable to the plaintiff . . .’ [Citation.] The plaintiff need only establish that his or her claim has ‘minimal merit’ [citation] to avoid being stricken as a SLAPP.” (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291.)

C. ANALYSIS

1. Each of the Subject Claims Arises Out of Protected Activity

Through their Opposition, Plaintiffs contend that (as to the causes of action remaining following the Court’s July 23, 2026 Minute Order granting Defendants’ demurrer) Moving Defendants are liable under a conspiracy or aiding-and-abetting theory. “The trespass, conversion, trespass-to-chattels, Bane Act, and emotional-distress claims are premised on a course of physical conduct, one the FAC pleads from its opening pages as a single ‘orchestrated . . . scheme’ in which ‘a non-owner guest physically seized control’ of the Property and the family ‘only later sought to legitimize this unlawful occupation through court proceedings,’ a scheme ‘coordinated among multiple family members, including Defendants Kenneth Leong and Mimi Leong’ (FAC 1, 43-46 [sequencing and secret transfer]), seizing and re-locking the Property against its half-owner, Lilley, excluding Plaintiffs Lilley and Anthony, and withholding Anthony’s medications, medical equipment, and belongings.” (Opposition at 6:12-22; see also and 13:5-9 [“Should the Court nonetheless reach step two, the conspiracy showing satisfies minimal merit . . .”].) Plaintiffs argue that “Kenneth’s liability for those torts is pleaded on conspiracy and aiding-and-abetting principles, and a conspirator is liable for the torts of his coconspirators committed in furtherance of the common design, whether or not he personally turned the screwdriver.” (Opposition at 6:22-25.)

Moreover, in the respective sections of their Support Memo dedicated to the causes of action for malicious prosecution and abuse of process, Plaintiffs argue that a civil conspiracy or aiding and abetting legal theory is also the basis for asserting these two claims against Moving Defendants. (See, e.g., Support Memo at 7:23-24 [“One who is ‘actively instrumental’ in causing a proceeding to be initiated and maintained is liable for malicious prosecution though not a party to it”]; 10:25-28 [“As to Kenneth and Mimi, who were not physically present, liability for these acts rests on settled imputation doctrines: a conspirator who shares the common plan is liable for co-conspirators’ tortious acts in furtherance of it even though he was a non-acting party

[citation], and one who knows a tort is being committed and gives substantial assistance or encouragement is liable as an aider and abettor”].)

Based on the foregoing, the Court finds that the alleged activities that give rise to both Kenneth and Mimi’s asserted liability, with one exception, are activities that constitute protected speech or petitioning. (See *Navellier*, *supra*, 29 Cal.4th at 92.)

Each of the nine claims against Kenneth at issue in the instant motion are based on allegations that he: (1) gave false information to police officers; (2) “instigated and directed the filing of restraining order applications containing false allegations,” and/or otherwise actively participated in the filing and prosecution of *Leong v. Mazy I* and *II*; and (3) recommended to Leo Leong that Leo transfer an interest in the Residence to Khin Kyi Leong. (See FAC at ¶¶ 26-34, 44, 87, 93, 125, 142, 149, 155.) Similarly, the remaining five claims asserted against Mimi Leong are based on allegations that she gave false information to police officers and/or actively participated in the filing and prosecution of *Leong v. Mazy I* and *II*. (See FAC at ¶¶ 26-34, 125-127, 133, 142, 146, and 155.) The foregoing is consistent with the theories advanced through Plaintiffs’ Opposition papers. Plaintiffs cite to evidence of three acts by Moving Defendants in support of their civil conspiracy, or aiding and abetting, theory of liability : (1) the telephone call during Officer Romero’s investigation (see FAC at ¶¶ 26-27); (2) Kenneth’s assistance in completing the Request for Order forms that, respectively, initiated *Leong v. Mazy I* and *II* (see *id.* at ¶¶ 29-30); and (3) Kenneth Leong’s recommendation to Leo Leong that Leo transfer 3% interest to Defendant Khin Kyi (see *id.* at ¶ 44).

Moving Defendants concede that the allegations that Kenneth recommended to Leo Leong that he transfer an interest in the Residence to Khin Kyi Leong is not protected activity. (See Support Memo at 5:16:6-10.) The Court finds that each of the other categories of alleged activity described above, each of those addressed by the Motion, constitutes protected activity.

Communications with Officer Romero and assistance with the preparation and prosecution of *Leong v. Mazy I* and *II* are activities that fall within the definition of protected activities under the anti-SLAPP statute.² (See Section 425.16, subds. (e)(1) and (2); see also *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115 [“the constitutional right to petition . . . includes the basic act of filing litigation or otherwise seeking administrative action” (internal quotations omitted)], *Ludwig v. Super. Ct.* (1995) 37 Cal.App.4th 8, 18 [held: one who “supports and encourages the filing of a lawsuit” engages in protected activity], and *Chabak v. Monroy* (2007) 154 Cal.App.4th 1502, 1511 [“[defendant’s] statements to the police clearly arose from protected activity”].)

For purposes of anti-SLAPP analysis, a “so-called ‘mixed cause of action’ . . . combines allegations of activity protected by the statute with allegations of unprotected activity.” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 381-82 (*Baral*).) A special motion to strike may properly be granted as against the claims based on allegations of protected activity, even though such ruling does not dispose of an entire cause of action. (See *ibid.*)

² As the Court seeks additional briefing on these matters, nothing herein is intended as communicating a finding of fact or conclusion of law. Rather the instant discussion is provided only to guide the parties in providing further briefing to the Court.

However, for purposes of analyzing a mixed cause of action, caselaw recognizes two distinct types of anti-SLAPP Motion. “In [*Taus v. Loftus* (2007) 40 Cal.4th 683 (*Taus*)], the anti-SLAPP movant sought to strike particular kinds of alleged conduct, while in [*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811 (*Oasis*)] the anti-SLAPP movant moved to strike the entire complaint.” (*Young v. Midland Funding LLC* (2023) 91 Cal.App.5th 63, 98 (*Young*).) Where a party does not directly make a request for the narrower form of relief (striking of specific allegations) in its notice of motion or in the motion itself, then an anti-SLAPP motion will be denied if the movant-defendant fails to adequately dissect each of the . . . legal theories presented, element-by-element, so that the plaintiff receives notice of exactly what elements of which legal theories the defendant claims were based on protected conduct and lacked minimal merit.” (See *ibid.*) “If a cause of action contains multiple claims and a moving party fails to identify how the speech or conduct underlying some of those claims is protected activity, it will not carry its first-step burden as to those claims.” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1011.) “Baral requires courts to ‘analyze each claim for relief – each act or set of acts supplying a basis for relief, of which there may be several in a single pleaded cause of action – to determine whether the acts are protected and, if so, whether the claim they give rise to has the requisite degree of merit to survive the motion.’ [Citations.] As applied in *Bonni* and other cases [citations], this analysis focuses factually on specific ‘acts,’ ‘activities,’ or ‘conduct’ that make up the elements of a pleaded claim. (*Young v. Midland Funding LLC* (2023) 91 Cal.App.5th 63, 97.)

The Court finds that Moving Defendants, here, sufficiently “dissect[ed] each of the . . . legal theories presented . . . so that the plaintiff receives notice of exactly what elements of which legal theories the defendant claims were based on protected conduct and lacked minimal merit.” (*Young, supra*, 91 Cal.App.5th at 98.) First, Moving Defendants’ motion is directed at specific causes of action, rather than the entire FAC. Moreover, as noted above, Moving Defendants clearly, through their moving papers, acknowledged and conceded that the allegations that Kenneth recommended Leo transfer an interest in the Residence were not protected activities. Finally, as noted in the Court’s July 23, 2026, Minute Order, the FAC does not clearly allege facts sufficient to put either Moving Defendants or the Court on notice of their conspiracy and aiding and abetting theories of liability. As the Court previously noted, this theory was only clarified through the Opposition.

In this context, the Court finds that the Motion and moving papers articulate Moving Defendants’ theory sufficiently to have put Plaintiffs on notice of the nature of the Motion. (See, e.g., Opposition at 7:3-11 [acknowledging Moving Defendants’ concession regarding the recommendation allegations].) Moreover, in abundance of respect for Plaintiffs’ due process rights, the Court has provided Plaintiffs with an opportunity to supplement their briefing to address any confusion with the theories advanced through the instant motion created by the ambiguity in Plaintiffs’ theories of liability asserted against each of the Moving Defendants vis-à-vis the instant Motion.

2. Likelihood of Success on the Merits

Plaintiffs fail to demonstrate a likelihood of prevailing on the merits of their claims against either Kenneth or Mimi. Again, Plaintiffs argue that “As to Kenneth and Mimi, who were not physically present, liability for these acts rests on settled imputation doctrines: a conspirator who shares the common plan is liable for co-conspirators’ tortious acts in furtherance of it even though he was a non-acting party [citation], and one who knows a tort is being committed and gives substantial assistance or encouragement is liable as an aider and abettor.” (Opposition at 10:25-11:3.)

“‘The elements of a civil conspiracy are (1) the formation of a group of two or more persons who agreed to a common plan or design to commit a tortious act; (2) a wrongful act committed pursuant to the agreement; and (3) resulting damages.’ [Citation.]” (*Hoang v. Tran* (2021) 60 Cal.App.5th 513, 539.) “Liability may be imposed on one who aids and abets the commission of an intentional tort if the person (a) knows the other’s conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person’s own conduct, separately considered, constitutes a breach of duty to the third person.” (*Casey v. U.S. Bank Nat. Assn.* (2005) 127 Cal.App.4th 1138, 1144. Internal quotations and citations omitted.)

The Court finds that Plaintiffs fail to substantiate a claim for civil conspiracy against either Kenneth or Mimi. Specifically, the Court finds no evidence tending to support the first element of a civil conspiracy. Similarly, the Court finds no evidence tending to support that either Kenneth or Mimi *knew* that Leo or Khin Kyi Leong’s conduct constituted a breach of duty, nor evidence that either Kenneth or Mimi’s acts were undertaken for purposes of giving assistance or encouragement to any such breach of duty.

Through their Supplemental Opposition, Plaintiffs cite to paragraphs 1, 9-10, 23, 113, and 137 for allegations of a common plan or design. (See *id.* at 9:5-18.) Of these, however, the allegations of paragraphs 9 and 10 are merely boilerplate agency allegations, and the cited allegation of paragraph 23 (“Leo told Lilley that he and Kenneth had discussed buying Lilley’s interest in the Property”) does not support the element. This leaves only the minimal allegations of paragraphs 1, 113, and 137.

Even assuming, *arguendo*, that these allegations are sufficient to state the asserted claims against Kenneth and Mimi under civil conspiracy and aiding and abetting theories of liability, Plaintiffs fail to produce any evidence tending to show an agreement to a common plan or design to commit a tortious act; nor do Plaintiffs produce evidence tending to show Kenneth or Mimi’s knowledge that Leo or Khin Kyi Leong’s conduct constituted a breach of duty or evidence that either of their actions were undertaken for purposes of giving assistance or encouragement to such breach. Indeed, in the section of their Supplemental Opposition dedicated to citing evidence, Plaintiffs leap directly to evidence of the wrongful acts committed pursuant to the agreement. (See *id.* at 10:22, *et seq.*)

Mere evidence of the allegedly wrongful acts is insufficient. “Because civil conspiracy is so easy to allege, plaintiffs have a weighty burden to prove it. [Citation.] They must show that

Based on the foregoing, the Court finds that Plaintiffs have not carried their burden of showing a likelihood of prevailing on the merits of their claims against Mimi Leong. Plaintiffs also fail to carry their burden of showing a likelihood of prevailing on the merits of their claims against Kenneth Leong based on giving false information to police and/or assisting with the filing and prosecution of *Leong v. Mazy I* and *II*

Through the Notice of Motion, Moving Defendants indicate that they will “seek their attorney’s fees incurred in connection with this motion by way of a separate attorney’s fee request following the hearing on this motion.” The Court concludes that this statement is not sufficient to raise the issue in connection with the *instant* motion. This does not, however, foreclose Moving Defendants from seeking such fees. (See *Melbostad v. Fisher* (2008) 165 Cal.App.4th 987, 992 [“In general, the party prevailing on a special motion to strike may seek an attorney fees award through three different avenues: simultaneously with litigating the special motion to strike, by a subsequent noticed motion, or as part of a cost memorandum at the conclusion of the litigation”].)

25PR000132

- [2] REVIEW – 1ST YEAR

[illegible]

Conservatorship of Duenas, Janelli

26-47375

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the case is set for a Review – Biennial hearing in two years, on September 01, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Neller, Adam Thomas

26-52441

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the case is set for a Review – Biennial hearing in two years, on September 01, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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****at 9:30 a.m.****

In The Matter of The Charles and Gwendolyn Olson Estate

26PR000062

REVIEW HEARING

APPEARANCE REQUIRED

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Balcal Construction, Inc. v. Suzanne Giraud et al

23CV001364

DEFENDANTS/CROSSCOMPLAINANTS' MOTION TO COMPEL FURTHER
RESPONSES TO REQUESTS FOR ADMISSIONS, SET TWO AND FORM
INTERROGATORY NO 17.1, SET TWO

TENTATIVE RULING: The motion is DENIED.

A. PROCEDURAL MATTERS

Defendants/Cross-Complainants, Louis & Suzanne Giraudos (“Giraudos”) move, pursuant to Code of Civil Procedure, sections 2030.300 and 2033.290,³ for an order compelling Plaintiff/Cross-Defendant, Balcal Construction, Inc. (“Balcal”) to serve further responses to Request for Admissions, Set Two, Nos. 9-137 (“RFAs”) and Form Interrogatory, Set Two, No. 17.1, served on Balcal on May 26, 2026. Giraudos further move for monetary sanctions against Balcal and its counsel in the amount of \$6,740.

The moving party failed to timely file and serve their motion, and the opposing party failed to timely file and serve their opposition. While Balcal raises the notice defect in Opposition, it also provides a substantive opposition to the merits of the motion. For that reason, and in light of the upcoming trial date, the Court elects to consider both the moving and opposing papers.

By Minute Order dated October 7, 2025, the present action was consolidated with later-filed *Giraudos et al v. Balcal Construction Inc. et al*, case no. 25CV000306, which essentially constitutes Giraudos’ additional crossclaims against Balcal.⁴ As part of that order, the Court allowed specified discovery to reopen “for [a]ll elder abuse and expert discovery.” (10/7/25 Minute Order.) On December 2, 2025, the consolidated matter was set for trial for October 26, 2026.⁵

B. DISCUSSION

Balcal objected to all 128 RFAs and Form Interrogatory No. 17.1 (as to all RFAs), stating, for the most part, “Discovery is only still open with regard to the Elder Abuse matter in his case. Questions related to the construction contract, scope of work documents, change orders, and schedule of values do not apply to elder abuse. This question clearly relates to construction, and is nearly identical in style and purpose as all prior discovery propounded by Defendant and Cross Plaintiff. As such, discovery on those issues has been closed, and Plaintiff objects to such question, and will not be providing an answer to this question.” (Mem., p. 8.)

The Court has reviewed the RFAs, attached as Exhibit D (PDF pp. 49-69) to the Declaration of Vincent Spohn. The RFAs pertain to the construction work by Balcal and several change orders that have been at issue in this case since its conception. Indeed, the Giraudos’ November 21, 2023 Cross-Complaint raised the change orders as an issue in the case. (See Cross-Complaint, filed 11/21/23, in case no. 23CV001364, ¶¶ 14, 39.) In fact, the Court notes

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

⁴ The Giraudos filed a Cross-Complaint, asserting seven causes of action against Balcal, in first-filed case no. 23CV001364 on November 21, 2023.

⁵ Prior to the December 2, 2025 trial setting, trial in the first-filed matter had previously been continued three times and once vacated. It was originally set for November 18, 2024. (04/03/24 Minute Order.) Giraudos moved to continue the trial and related pre-trial deadlines on no less than four occasions, and Balcal moved for a trial continuance once. (08/15/25 [denying Defendants’ motion to continue trial]; 09/13/24 Minute Order [granting Defendants’ motion and continuing trial to 03/17/25]; 02/07/25 Minute Order [granting Defendants’ motion and continuing trial to June 2, 2025]; 04/22/25 Minute Order [granting Plaintiff’s motion and continuing trial to October 13, 2025]; 10/07/25 Minute Order [granting Giraudos’ motion to reset trial].)

that the paragraphs listing the facts which comprise Balcal’s liability in Giraudos’ November 21, 2023 Cross-Complaint (Paragraph 14) and Giraudos’ FAC (Paragraph 15) are substantially similar. Facts alleged in the November 21, 2023 Cross-Complaint have been an available subject of discovery since 2023. Thus, to the extent the same facts comprise the Giraudos’ FAC, the order reopening discovery in 2025 was not intended to apply thereto.

Giraudos appear to concede that the RFAs pertain to the construction work and change orders. (See Mem. 11:12-14.) They argue that those RFAs are still relevant to the third element for elder abuse which requires Giraudos to demonstrate Balcal’s conduct was for wrongful use, with intent to defraud, or through undue influence. (Mem., 11:14-16; Reply, 3:9-19.) Giraudos additionally argue that Balcal has failed to meet its burden by failing to explain why the RFAs are irrelevant to the elder abuse claim.

Balcal makes clear that the issue is less about the relevance of the RFAs to the elder abuse claim, and more about the fact that discovery closed as to issues predating Giraudos’ FAC. (See Opp., 5:25-6:2.) Balcal contends that the subject discovery requests are “principally similar to discovery that has been ongoing for nearly three years of litigation.” (*Id.*, 6:5-7.) Thus, Giraudos’ RFAs are “an improper attempt to circumvent the discovery cutoff and the limited scope of discovery remaining in this action.” (*Id.*, 6:3-5.)

The Court finds that Balcal has met its burden to justify its objection on the ground that the scope of the subject discovery exceeds the scope allowed by the Court’s October 7, 2025 Order for “elder abuse.” Again, the order reopening discovery was not intended to reopen discovery as to issues that were active in this case from its inception. Rather, the purpose was to allow discovery into areas that only became available upon the filing of the newly-asserted elder abuse claim. The fact that Balcal’s wrongdoing is a fact at issue for elder abuse does not reopen discovery into that general alleged wrongdoing, upon which the case has been based since Giraudos’ Cross-Complaint filed in 2023. Notably, the order reopening discovery did not allow for discovery regarding Giraudos’ newly-asserted embezzlement claim, which asserts the same wrongful conduct by Balcal as that included in Giraudos’ elder abuse claim. (Giraudos’ FAC, ¶¶ 26-28, 44-46.)

Based on the foregoing, the Motion is DENIED. Giraudos’ request for sanctions is therefore DENIED.

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Caroline Geitner v. Tia Sonesouphab et al

24CV002118

MOTION FOR RELIEF FROM WAIVER OF OBJECTIONS TO DEFENDANT'S REQUESTS FOR SPECIAL INTERROGATORIES

TENTATIVE RULING: The motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies

forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Caroline Geitner moves, pursuant to California Code of Civil procedure 2030.290, subdivision (a), for relief from waiver of objections to Defendant ST. Joseph Health Northern California, LLC.'s Special Interrogatories (Set Two).

The Court finds, from the evidence presented, that Ms. Geitner has served a response that is in substantial compliance with the relevant provisions of the Civil Discovery Act, and that her failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290, subd. (a).) This Order is without prejudice to Defendant's right to file a motion to compel discovery should it determine such a motion is necessary.

The Motion is, therefore, GRANTED.

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Melissa Castellucci v. Peju Family Operating Partnership, LP

25CV000098

PLAINTIFF'S MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION AND
PAGE SETTLEMENT

TENTATIVE RULING: The motion for preliminary approval of class action settlement is GRANTED. The Court will sign the proposed order. The matter is set for a Final Approval Hearing on January 5, 2027 at 8:30 a.m. in Dept. A. The December 15, 2026 OSC is VACATED.